

**JUSTIFICATION REVIEW DOCUMENT
OTHER THAN FULL AND OPEN
COMPETITION**

PROJECT/EQUIPMENT:

Architect Engineering Services Single Award Task-Order Contract (SATOC) Indefinite Delivery Contract (IDC) to perform Hydrologic and Hydraulic engineering, modeling, and water control manual updates.

AUTHORITY: 10 U.S.C 3204(a)(1) as implemented by FAR 6.3021-1(a)(2), Only from a limited number of responsible sources and no other supplies or services will satisfy agency requirements.

AMOUNT: \$5,000,000.00

PREPARED BY:	NAME: Tyler Godwin PHONE: [REDACTED]	DATE: 5 February 2025
CONTRACTING OFFICER:	NAME: Shawn Brady PHONE: [REDACTED]	DATE: 5 February 2025
TECHNICAL:	NAME: Jay V. Surman PHONE: [REDACTED]	DATE: 5 February 2025
REQUIREMENTS:	NAME: Jay V. Surman PHONE: [REDACTED]	DATE: 5 February 2025

SIGNATURES ARE REQUIRED BELOW

I have reviewed the J&A and find the justification adequate to support other than full and open competition.

DEPUTY FOR SMALL BUSINESS	SIGNATURE: CROUSE.MELEA.D ARLINE FORT [REDACTED] Date: 2025.04.02 13:00:47 -05'00'
A/E COORDINATOR	SIGNATURE: SURMAN.JAY. V. [REDACTED] Date: 2025.04.01 15:52:42 -05'00'
OFFICE OF COUNSEL	SIGNATURE: [Signature] Date: 2025.04.03 10:04:16 -05'00'
DISTRICT CONTRACTING CHIEF	SIGNATURE: HUTCHISON.BRIA N.C. [REDACTED] Date: 2025.04.09 10:48:42 -05'00'

Controlled by: USACE, Tulsa District
Controlled by: Contracting – Civil – (CESWT – CT)
CUI Category(is): SSEL
Limited Dissemination Control: FED ONLY
POC: Tyler Godwin, [REDACTED]

JUSTIFICATION AND APPROVAL FOR
OTHER THAN FULL AND OPEN
COMPETITION

Architect Engineering Services Single Award Task-Order Contract (SATOC) Indefinite Delivery Contract (IDC) to perform Hydrologic and Hydraulic engineering, modeling, and water control manual updates.

Tulsa District

1. **CONTRACTING AGENCY:** The responsible contracting agency is the U.S. Army Corps of Engineers (USACE), Southwestern Division, Tulsa District, Contracting Division (CESWT-CT), 2488 E. 81st, Tulsa, OK 74137.
2. **DESCRIPTION OF ACTION:** Request approval to award a new \$5,000,000 (\$5M) limited source, firm-fixed-price, "D" type Single Award Task Order Contract (SATOC), notwithstanding 40 U.S. Code (U.S.C.) Chapter 11 and FAR Subpart 36.6 which requires that at least three most highly qualified firms be recommended for negotiations for award. For this SATOC, only two firms were determined to be most highly qualified, and therefore justification is required.. These services will be funded under individual task orders as specific requirements arise. Typical funding used for these task orders is Civil Works Operations and Maintenance (O&M) and Civil Works Dam Safety.
3. **DESCRIPTION OF SERVICES:** Architect Engineering Services Single Award Task-Order Contract (SATOC) Indefinite Delivery Contract (IDC) to perform Hydrologic and Hydraulic engineering, modeling, and water control manual updates to support the USACE Tulsa District's civil works missions, studies, operation of multi-purpose project, execution of the flood risk management mission, as well as national initiatives, international, and interagency support:
 - a. Provide full development of hydrologic and hydraulic computer models for both real-time and period-of-record applications, all Geographic Information System (GIS) based models will be Spatial Data Standards for Facilities, Infrastructure, and Environment (SDSFIE) compliant, will include review, testing, calibration, analyses, optimization, and report generation, may include use of geographic river analysis system (GeoRAS) Hydrologic Engineering Center River Analysis System (HEC-RAS) steady flow, HEC-RAS unsteady flow, Two-Dimensional Flood Routing Model (FLO-2D), Three-Dimensional Flood Routing Model (FLOW-3D), Hydrologic Engineering Center Meteorological Visualization Utility Engine (HEC-MetVue), Geo (Earth) Hydrologic Modeling System (GeoHMS), Hydrologic Engineering Center Hydrologic Modeling System (HEC-HMS), Hydrologic Engineering Center Reservoir System Simulation (HEC-ResSim), Riverware, Hydrologic Engineering Center Flood Impact Analysis (HEC- FIA), Hydrologic Engineering Center Statistical Software Package (HEC-SSP), Hydrologic Engineering Center Data Storage System (HEC-DSS), Environmental Systems Research Institute, Inc. (ESRI ArcGIS); development of rating curves, inundation maps, hydrologic data for period-of-record, Probable Maximum Precipitation (PMP), Probable Maximum Flood (PMF), and depth-area-duration curves; analysis and/or design of hydraulic structures related to outlet works, spillways, or other drainage structures; development of Federal Emergency Management Agency (FEMA) requirements for Letter of Map Amendment (LOMA) and Letter of Map Revision Based on Fill (LOMR-F).
 - b. Provide manual development for Water Control Manuals and Drought Contingency Plans in accordance with applicable USACE engineering regulations which will include updating text, charts, graphs, maps, and plates and will require data development and statistical analyses.
 - c. For river system water control manuals plans (master plan) and reservoir water reallocation studies, provide all manual/study development, H&H modeling, environmental assessments (NEPA requirements) and study reports in accordance with applicable USACE engineering and federal, state, and local environmental regulations which will include updating text, charts, graphs, maps, and plates

and will require data development and statistical analyses.

4. **AUTHORITY CITED:** Under 10 U.S.C. 3204(a)(1), as implemented by FAR 6.302-1, the Department of Defense (DoD) is authorized to use non-competitive procedures when there is a limited number of responsible sources, and no other supplies or services will meet the agency's requirements.

5. **REASON FOR AUTHORITY CITED:** This J&A is based upon FAR 6.302-1(a)(2) and is necessary for this requirement based on the following rationale:

- a. Background: As determined during market research procedures, this requirement was initially issued as a small business set-aside to industry under solicitation W912BV24R0003 on 8 April 2024. Proposals (SF330s) were received by 8 May 2024. [REDACTED] and [REDACTED] submitted proposals in a timely manner. No other offerors responded to the solicitation. The Selection Board's review of the SF 330s determined that both firms demonstrated higher aggregate qualifications relevant to the primary selection criteria and were considered "Most Highly Qualified." [REDACTED]

The solicited SATOC referenced is governed by Public Law 92-582, commonly known as the "Brooks Act," 40 U.S.C. Chapter 11, and Engineering Pamphlet (EP) 715-1-7. 40 U.S.C. 1103 mandates agencies shall conduct discussions with at least three firms. Similarly, FAR 36.602-3(c) and (d) require at least three firms be recommended for consideration. EP 715-1-7 further specifies that "at least three most highly qualified firms must be recommended if a single contract will be awarded." EP 715-1-7 further provides that if the selection board cannot recommend at least three most highly qualified firms as required by the Brooks Act, then the scope of the contract should be revised to increase competition, and the contract should be re-synopsized accordingly. However, in this case, the scope cannot be revised because each of the services identified is integral to achieving the mission objectives of this Indefinite Delivery Contract (IDC); altering or removing any service would compromise the effectiveness and intended outcomes of the requirement. Moreover, scope revisions are not expected to enhance industry interest, as two proposals have already been received and no adverse feedback regarding the scope has been received from industry. Therefore, in an effort to otherwise increase competition, this action was amended to remove the small business set-aside requirement and has been re-advertised as unrestricted. The DD Form 2579 for this action was revised, and a memorandum for record was added to the contract file providing the rationale for advertising as unrestricted. On 16 October 2024, this action was amended to remove the small business set-aside and re-advertised as unrestricted for 30 days. No additional responses to the solicitation were received resulting from this change.

- b. Justification: FAR 6.302-1 permits the agency to justify the SATOC award even when there are fewer than three most highly qualified firms available for negotiations, despite the requirements of the Brooks Act. Additionally, CECT-ZA(715e) MEMORANDUM FOR Acquisition Community, Subject: Updated Procedures for the Selection of Task Orders on Architect-Engineer Indefinite Delivery Contracts (IDCs), dated 09 March 2023, allows a Justification and Approval J&A to be executed when less than three Most Highly Qualified firms are qualified for an A-E acquisition. In this case, limited competition was achieved as two proposals were received, and both firms were deemed highly qualified. Of these two firms, the most highly qualified will be recommended for negotiations for the award. A notification was sent to all small business firms that responded to the sources sought synopsis and all firms that submitted a proposal for the previous IDC W912BV19D0001, but no responses were received. This action was amended to remove the small business set-aside and re-advertised as unrestricted for an additional 30 days. No submissions were received in response to this change. While the standards set forth in the Brooks Act are unable to be met, the Government expects that fair and reasonable pricing can be reached with one (1) of the two (2) competing offerors who have currently submitted.
- c. Alternatives: Three (3) alternatives have been explored for this action. The Government issued a notice

of intent to limit competition to the two firms that submitted proposals was posted on SAM.gov on 9 August 2024. The notice of intent informed industry that they were to provide their interest on the project no later than 23 August 2024, for the Government to consider re-opening the solicitation for an additional 60 days. No response to the notice of intent was received. On 16 October 2024, this action was amended to remove the small business set-aside and re-advertised as unrestricted for 30 days. No additional responses to the solicitation were received after this change. Additionally, offerors that previously responded to the Sources Sought synopsis for this action were contacted to determine if they were still interested. None of the offerors that were contacted expressed interest in this action. The only feedback received from these firms indicated that they either were no longer interested or were participating in teaming agreements with the firms that already submitted on this action. The last alternative would be to cancel the subject solicitation, and issue stand-alone contracts to meet the requirements for Hydrologic and Hydraulic engineering, modeling, and water control manual updates for Tulsa District.

- d. **Impact:** The absence of an Architect-Engineer (AE) firm to perform critical hydrologic and hydraulic (H&H) engineering, design, and software development tasks would significantly impair the Tulsa District's ability to manage its civil works missions effectively. Deficiencies in model development, manual updates, and compliance with environmental and regulatory standards would compromise public safety, infrastructure integrity, and environmental sustainability. Securing the services of a qualified AE firm is crucial to ensure the successful execution of these essential tasks. It is not in the Government's best interest to cancel the subject solicitation, and issue stand-alone contracts to meet these requirements. Soliciting and evaluating proposals from different firms will have an impact on Tulsa District's administrative efforts and limitations on labor funding. Additionally, having inconsistencies between competing contractors will impact the efficiency of these projects. It is expected that a sole contractor provides more consistent file transfer systems, data collection methods, and points of contact.
6. **EFFORTS TO OBTAIN COMPETITION:** Efforts to encourage competition were initiated by posting a Sources Sought Notice, W912BV24S0003, on 21 August 2023, with a closing date of 3 October 2023. The notice aimed to identify business concerns capable of performing the required work. Interested firms were asked to submit a list of no more than three current projects demonstrating technical experience, references for each project, a statement of the firm's business size and type, an intention to submit an offer on the project, a statement of the firm's bonding capacity, and their CAGE and UEI numbers. A total of four small businesses and two large businesses responded, as further detailed in Market Research below
 7. **ACTIONS TO INCREASE COMPETITION:** Solicitation W912BV24R0004 was issued on SAM.gov on 8 April 2024, with responses due on 8 May 2024. Due to only two proposals being received in response to the solicitation, a notice of intent to limit competition to the two firms that submitted proposals was posted on SAM.gov on 9 August 2024. The notice of intent informed industry that they were to provide their interest on the project no later than 23 August 2024, in order for the Government to consider re-opening the solicitation for an additional 60 days. No response to the notice of intent was received. On 16 October 2024, this action was amended to remove the small business set-aside and re-advertised as unrestricted for 30 days. No additional responses to the solicitation were received after this change. Additionally, offerors that previously responded to the Sources Sought synopsis for this action were contacted to determine if they were still interested. None of the offerors that were contacted expressed interest in this action. Feedback from these firms indicated that they were either no longer interested, had formed teaming arrangements with firms that had already submitted proposals for this acquisition, or had opted to focus on the A/E General Services contract, which was being competed concurrently.
 8. **MARKET RESEARCH:** The overall procurement value is expected to be \$5M for five years consisting of a base period of five years. The North American Industry Classification Systems (NAICS) code for this project is 541330 with a small business size standard of \$22.5M in average annual receipts. A sources sought synopsis was posted on SAM.gov on 21 Aug 2023. Six timely responses were received.

- a. [REDACTED]
[REDACTED]
[REDACTED]
- [REDACTED]
[REDACTED]
- [REDACTED]
[REDACTED]
- [REDACTED]
[REDACTED]
- [REDACTED]
[REDACTED]
- [REDACTED]
[REDACTED]

Technical Analysis of the respondents concluded that all responses received from the Sources Sought Notice appear qualified and capable.

Based on the analysis of the information provided:

- a. There were sufficient responses from capable small businesses to consider a set-aside in accordance with FAR 19.502-2. There was an expectation that at least 3 offers from highly qualified small business firms would be received in accordance with Brooks Act requirements. However, since only two proposals were received, the Government amended the solicitation to remove the small business set-aside in an effort to enhance competition. A special notice was issued to inform industry of the extended proposal due date and the reissuance of the acquisition as an unrestricted procurement.
- b. There was not sufficient response from capable HUBZone small businesses to consider a set-aside in accordance with FAR 19.1305.
- c. There was not sufficient response from capable service-disabled veteran-owned small businesses (SDVOSB) to consider a set-aside in accordance with FAR 19.1405.
- d. There was not sufficient response from capable women-owned small businesses (WOSB) to consider a set-aside in accordance with FAR 19.1505.

During the kickoff meeting, the Project Delivery Team (PDT), including the SBA office representative, determined that four small businesses responded to the sources sought and were confident that we could receive at least three qualified proposals such that both Brooks Act and small business-set-aside requirements would be met. It was recommended that this procurement be issued to the industry under a small business set-aside.

9. **INTERESTED SOURCES:** Two responses were received from W912BV24R0003 as detailed in paragraph 5a. Furthermore, timely responses were submitted in response to the agency's sources sought notice.

- 10. OTHER FACTS:** Hydrologic and Hydraulic (H&H) Engineering Design, Model, and Analysis services were previously procured under SATOC contracts W912BV19D0001 with West Consultants for small business set-aside procurement and W912BV19D0002 with Halff Associates for the unrestricted procurement. Both contracts were awarded on 18 October 2019 and expired on 21 April 2024. Prior to the Fiscal Year (FY) 19 contracts, an H&H IDC was awarded to West Consultants on March 3, 2015. At that time, a different acquisition approach was used, in which separate SATOCs were awarded—one for small business and one unrestricted—allowing for greater flexibility in meeting mission requirements. For the current acquisition, separate vehicles were not pursued due to limited interest from industry in response to the sources sought notice, which did not indicate adequate capability or competition to support both a small business set-aside and an unrestricted award strategy. [REDACTED]

- 11. TECHNICAL CERTIFICATION:** I certify that the supporting data under my cognizance which are included in the justification are accurate and complete to the best of my knowledge and belief.

NAME: Jay V. Surman
TITLE: AE Coordinator

SURMAN.JAY.
V. [REDACTED] Date: 2025.04.01 15:53:47 -05'00'
SIGNATURE: _____

- 12. REQUIREMENTS CERTIFICATION:** I certify that the supporting data under my cognizance which are included in the justification are accurate and complete to the best of my knowledge and belief.

NAME: Jay V. Surman
TITLE: AE Coordinator

SURMAN.JAY.
V. [REDACTED] Date: 2025.04.01 15:54:00 -05'00'
SIGNATURE: _____

- 13. CONTRACTING OFFICER CERTIFICATION:** I certify that this J&A is accurate and complete to the best of my knowledge and belief.

NAME: Shawn Brady
TITLE: Contracting Officer

Shawn Brady 2025.04.01 16:22:55 -04'00'
SIGNATURE: _____

- 14. LEGAL CERTIFICATION:** I certify that this J&A has been reviewed by legal and is accurate and complete to the best of my knowledge and belief.

NAME: Bryan M. Harrington
TITLE: Attorney

Bryan M. Harrington Date: 2025.04.03 10:04:35 -05'00'
SIGNATURE: _____

- 15. SMALL BUSINESS CERTIFICATION:** I certify that this J&A has been reviewed by small business and is adequate to support other than full and open competition.

NAME: Melea D. Crouse
TITLE: Assistant Director of Small Business

CROUSE.MELEA.D
ARLINE [REDACTED]
FORT [REDACTED] Date: 2025.04.03 06:55:51 -05'00'
SIGNATURE: _____

- 16. DISTRICT CONTRACTING CHIEF CERTIFICATION:** I certify that this J&A has been reviewed by the district contracting chief and is adequate to support other than full and open competition.

NAME: Brian C. Hutchison
TITLE: District Contracting Chief

HUTCHISON.BRIA
N.C. [REDACTED] Date: 2025.04.09 10:50:48 -05'00'
SIGNATURE: _____

**JUSTIFICATION AND APPROVAL
FOR OTHER THAN FULL AND OPEN COMPETITION
Architect Engineering Services Single Award Task-Order
Contract (SATOC) Indefinite Delivery Contract (IDC) to perform Hydrologic and Hydraulic engineering,
modeling, and water control manual updates**

APPROVAL

Based on the foregoing justification, I hereby approve the procurement of an Architect Engineering Services Single Award Task-Order Contract (SATOC) Indefinite Delivery Contract (IDC) to perform Hydrologic and Hydraulic engineering, modeling, and water control manual updates, on an other than full and open competition basis pursuant to the authority of 10 U.S.C. 3204(a)(1) as implemented in FAR 6.302-1(a)(2), Only one responsible source and no other supplies or services will satisfy agency requirements, subject to the availability of funds and provided the services herein described have otherwise been authorized for acquisition.

CONCUR:

**Deena
Braunstein**

Deena G. Braunstein
Senior SCO Counsel

Digitally signed by Deena
Braunstein
Date: 2025.04.11 15:14:51
-04'00'

11 April 2025

Date

APPROVAL:

Laura Eichhorn

Digitally signed by
EICHHORN.LAURA.J.
Date: 2025.04.11 15:21:59 -04'00'

Laura J. Eichhorn
Command Advocate for Competition

11 April 2025

Date